information sharing policy

Version: 1.0 | Effective: | Review:

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title: "Information Sharing Policy" effectiveDate: "" reviewDate: "" version: "1.0"

Information Sharing Policy

Policy Title: Information Sharing Policy

1. Policy Statement

At [INSERT CARE HOME NAME], we are committed to ensuring that all information is shared in a lawful, ethical, safe, and proportionate way to support the health, safety, and wellbeing of residents while protecting their confidentiality and privacy.

We aim to:

- Share information appropriately to deliver safe, effective, and person-centred care
- Comply with data protection legislation, including the UK GDPR and Data Protection Act 2018
- Ensure that information sharing decisions are made in the best interests of residents
- Prevent misuse, unauthorised access, or inappropriate disclosure of personal data

2. Purpose

The purpose of this policy is to:

- Provide staff with clear guidance on when and how to share information
- Balance residents' rights to privacy with the duty to share information for their safety and wellbeing
- Ensure compliance with legislation, CQC requirements, and safeguarding duties

3. Scope

This policy applies to:

- All information held by [INSERT CARE HOME NAME], including personal, health, and financial records
- All staff, agency workers, contractors, and volunteers handling information
- Information shared with external professionals, regulators, families, and safeguarding authorities

4. Roles and Responsibilities

Registered Manager / Data Protection Lead:

- Ensures compliance with data protection and information sharing legislation
- Provides advice and support to staff on information sharing
- Investigates breaches or complaints relating to inappropriate sharing

All Staff:

- Follow the principles of lawful, fair, and transparent information sharing

- Ensure information shared is accurate, proportionate, and only with authorised persons
- Report any data breaches or inappropriate sharing immediately

5. Principles of Information Sharing

5.1 Lawful Sharing

- Information must only be shared in line with the UK GDPR, Data Protection Act 2018, and Caldicott Principles.
- Consent should be sought where appropriate and possible.
- In some cases, information may be shared without consent if required by law (e.g., safeguarding concerns, crime prevention).

5.2 Confidentiality

- Residents' personal and health information is confidential.
- Information is only shared on a need-to-know basis and with authorised individuals.
- Sensitive conversations must take place in private settings.

5.3 Safeguarding and Duty of Care

- Information must be shared without delay where failure to do so could place a resident or others at risk of harm.
- Safeguarding concerns must be reported to the Registered Manager and local authority.

5.4 Proportionality and Accuracy

- Only relevant, accurate, and up-to-date information should be shared.
- Staff must avoid unnecessary or excessive sharing.

5.5 Record Keeping

- All information-sharing decisions must be documented, including:
    - What was shared
    - With whom
    - The purpose for sharing
    - Whether consent was obtained or why it was overridden

6. Training and Awareness

- Staff will receive training on data protection, confidentiality, and information sharing at induction.
- Annual refresher training will be provided.
- Case studies and safeguarding scenarios will be used in training to support decision-making.

7. Monitoring and Audit

- Information sharing practices will be monitored through regular audits.
- Any breaches or near misses will be reviewed, with lessons learned shared in staff meetings.
- This policy will be reviewed annually or sooner if legislation or best practice guidance changes.

8. References

- UK GDPR (General Data Protection Regulation)
- Data Protection Act 2018
- Caldicott Principles
- Care Quality Commission (CQC) Fundamental Standards – Regulation 10 (Dignity and Respect), Regulation 17 (Good Governance)
- Care Act 2014 (Safeguarding Duties)

9. Related Policies

- Record Keeping / Confidentiality / GDPR Policy
- Safeguarding Adults Policy
- Privacy and Dignity Policy
- Complaints Policy
- Resident Finance / Handling Money Policy

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